



CHAPTER cxii.

An Act to extend the time limited for the construction of certain works by the London United Tramways Limited and for other purposes. A.D. 1910.
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[3rd August 1910.]

WHEREAS the London United Tramways Limited (in this Act called "the Company") are under and by virtue of the London United Tramways Acts 1873 to 1908 the owners of or are authorised to construct tramways and a light railway in the counties of Middlesex Surrey and London :

And whereas by the London United Tramways Act 1902 (herein-after called "the Act of 1902") the Company were subject to the provisions in that Act contained authorised to construct a tramway therein described as Tramway No. 7 in substitution for the existing line of tramway in Kew Road in the borough of Richmond (Surrey) :

And whereas the time limited by the Act of 1902 for the construction of the said tramway was extended by the London United Tramways Act 1906 (herein-after called "the Act of 1906") and by the London United Tramways Act 1908 (herein-after called "the Act of 1908") the time so limited was further extended and will expire on the eighth day of August one thousand nine hundred and ten :

And whereas it is expedient that the time limited for the construction of the said Tramway No. 7 should be further extended as in this Act provided :

And whereas provisions are contained in section 6 of the Act of 1908 whereby the Company may become liable to pay certain sums of money to the mayor aldermen and burgesses

A.D. 1910. of the borough of Richmond (Surrey) (herein-after called "the corporation") if the tramways authorised by the Act of 1908 and the said Tramway No. 7 and all widenings incidental to the last-mentioned tramway are not completed and the said tramways are not opened for public traffic on or before the first day of August one thousand nine hundred and ten and it is expedient that the said section should be modified as herein-after provided:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title. **1.** This Act may be cited for all purposes as the London United Tramways Act 1910 and the London United Tramways Acts 1873 to 1908 the London United Tramways Light Railways (Extension of Time) Order 1908 and this Act may be cited as the London United Tramways Acts 1873 to 1910.

Extension of time for construction of Tramway No. 7 authorised by Act of 1902. **2.**—(1) The powers granted by the Act of 1902 as extended by the Act of 1906 and the Act of 1908 for the construction of Tramway No. 7 authorised by the Act of 1902 are hereby extended and may be exercised by the Company for the period of one year from the first day of August one thousand nine hundred and ten and the Act of 1902 shall be read and construed as if the period limited by this Act for the completion of the said tramway had been the period limited by the Act of 1902 for the completion thereof.

(2) If the said tramway be not completed within the said period of one year then on the expiration of that period the powers for making and completing the same or otherwise relating thereto shall cease except as to so much thereof as shall then be completed.

Amendment of section 6 of Act of 1908. **3.** Sub-section (3) of section 6 of the Act of 1908 shall be read and have effect as if the first day of August one thousand nine hundred and eleven had been the date referred to in that sub-section in lieu of the first day of August one thousand nine hundred and ten.

[10 EDW. 7 & *London United Tramways Act*, 1910. [Ch. cxii.]
1 GEO. 5.]

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4. The Company and the corporation may by agreement vary the provisions of section 31 (For protection of corporation of Richmond) of the Act of 1902.

Alteration by agreement of section 31 of Act of 1902.

5. Notwithstanding anything in this Act contained the following provisions shall unless otherwise agreed between the corporation and the Company have effect for the benefit and protection of the corporation (that is to say):—

For protection of corporation of Richmond.

(1) If the Company shall not have substantially commenced the works in connexion with the construction of Tramway No. 7 authorised by the Act of 1902 before the first day of August one thousand nine hundred and eleven the corporation shall become entitled to exercise their power under the provisions of sub-section (2) of section 31 of the Act of 1902 as if the first day of August one thousand nine hundred and eleven had been referred to in that sub-section in lieu of six months after the expiration of a period of thirty years from the passing of that Act:

(2) Nothing contained in sub-section (1) hereof shall relieve the Company from any obligation to make the payments referred to in sub-section (3) of section 31 of the Act of 1902 unless and until the corporation shall purchase the tramway:

(3) The corporation shall permit the Company to construct Tramway No. 7 authorised by the Act of 1902 as a single line with such passing places as may be reasonably agreed between the corporation and the Company:

(4) As soon as the Company shall have commenced the works in connexion with the construction of Tramway No. 7 authorised by the Act of 1902 they shall proceed with the same continuously until completion.

6. Notwithstanding anything contained in this Act no posts shall be placed in the centre of any road for the purpose of working Tramway No. 7 authorised by the Act of 1902 by a system of traction conducted by means of posts and wires placed overhead without the consent of the Commissioner of Police of the Metropolis which consent shall not be unreasonably withheld.

Restriction on placing posts in centre of road.

A.D. 1910.

Copy of Act
to be regis-
tered.

7. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily.

There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on registration of any document other than the memorandum or the abstract required to be filed with the registrar by a receiver or manager or the statement required to be sent to the registrar by the liquidator in a winding-up in England.

Costs of Act.

8. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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